

Compass Education and Migration Pty Ltd

ABN: 17 613 203 419

Level 36, 680 George Street, Sydney, NSW, 2000, Australia

MIGRATION AGENT REPRESENTATION AGREEMENT

This is a retainer agreement between:

Compass Education and Migration Pty Ltd (ABN 17 613 203 419)

Level 36, 680 George Street,

Sydney, NSW, 2000

Responsible Registered Migration Agent

Tonglu Ge | MARN 1687805 | Registered Migration Agent

Phone: (02) 9283 1227

Email: admin@globalnznz.com

And

[Name of client]

of

[Address of client]

the client of Compass Education and Migration Pty Ltd ("the client"):

CLIENT DETAILS	Name: Date of Birth: Passport Number: Address: Email: Mobile:
SERVICE CATEGORY	☐ Visa application ☐ Preliminary advice only ☐ Visa / cancellation review advice ☐ Nomination / sponsorship ☐ Visa subclass: ☐ Other immigration assistance: ☐ Visa cancellation review ☐ Freedom of Information ☐ ART proceedings ☐ Ministerial intervention
FEES & CHARGES	Fees and charges are set out in the 'SCHEDULE OF FEES' at the end of this document.

IMPORTANT INFORMATION FOR CLIENTS:

The terms and conditions of this agreement are set out below. Make sure you have read and understood the conditions before entering into the agreement. If you wish to seek independent legal advice about this agreement, you should do so before signing this agreement. By initialing the bottom of each page, you are indicating that:

- You have read and understood the terms in this agreement.

· All documents you provide are authentic and effective.

I have read and understood the terms below and agree to be bound by this agreement.

Signed by the Client:

Date (DD/MM/YYYY):

Signed by the Agent:

Date (DD/MM/YYYY):

Compass Education and Migration Pty Ltd

ABN: 17 613 203 419

Level 36, 680 George Street, Sydney, NSW, 2000, Australia

TERMS AND CONDITIONS

1. APPOINTMENT OF COMPASS EDUCATION AND MIGRATION PTY LTD

- a. The Client appoints Compass Education and Migration Pty Ltd (ABN 17 613 203 419) and the Responsible Registered Migration Agent identified on page 1 to provide the selected services and act for the Client in the agreed matter.
- b. Each registered migration agent expected at signing to provide immigration assistance is identified in this Agreement by name, MARN and contact details.
- c. Before another or replacement registered migration agent provides immigration assistance, the Client will receive written notice of that agent's name, MARN, contact details and expected role.

2. CODE OF CONDUCT AND CONSUMER GUIDE

- a. This Agreement is governed by the *Migration (Migration Agents Code of Conduct) Regulations 2021*, as amended from time to time.
- b. Before immigration assistance begins, the Client has been given the current OMARA Consumer Guide and acknowledges receipt. Current and translated versions are available at <https://www.mara.gov.au/notices-and-reports/guides-and-factsheets/consumer-guide>.
- c. If this Agreement conflicts with applicable legislation or the Code, the legislation or Code prevails.

3. SERVICES TO BE PROVIDED

- a. Advise on the Client's migration options, applicable law and prospects of success.
- b. Check relevant forms, information and supporting documents.
- c. Prepare and lodge the agreed application, submission, request or representation.
- d. Respond to lawful requests for further information within the agreed scope.
- e. Notify the Client in writing when material is lodged and provide a copy.
- f. Keep the Client informed of material developments and promptly advise the outcome.
- g. No result is guaranteed.

4. WHO WILL PERFORM THE WORK

- a. Immigration assistance will be provided by the Responsible Agent named on page 1 and any other registered migration agent notified to the Client under clause 1(c). Administrative work may be performed by properly supervised staff.
- b. A newly allocated registered migration agent will not provide immigration assistance until the notice described in clause 1(c) has been given.

Signed by the Client:

Date (DD/MM/YYYY):

Signed by the Agent:

Date (DD/MM/YYYY):

Compass Education and Migration Pty Ltd

ABN: 17 613 203 419

Level 36, 680 George Street, Sydney, NSW, 2000, Australia

5. PROFESSIONAL DUTIES, DISCLOSURE AND FALSE OR MISLEADING INFORMATION

- a. Compass Education and Migration is in the business of providing education-related and immigration advice, uses registered migration agents for immigration assistance, maintains required professional indemnity insurance, and will act lawfully, professionally, competently, diligently, fairly and in the Client's legitimate interests.
- b. The Agent will provide courteous and attentive service, keep the Client informed, preserve confidentiality, provide required copies, return Client documents in accordance with the Code, and arrange access to an interpreter if requested on agreed terms.
- c. Any actual or potential conflict of interest or referral benefit will be disclosed in writing, including its nature, the provider and reason, and the amount or reasonable estimate. Required written Client confirmation will be obtained before continuing. The Agent will not act where an actual conflict could compromise objectivity, trust or confidentiality.
- d. The Agent will not make, encourage, submit or permit a statement or document that the Agent knows, suspects, or reasonably ought to suspect is false or misleading. The Agent will take the correction, notification, withdrawal and other steps required by law and the Code.
- e. The Client must provide complete, accurate, authentic and current information and documents and promptly disclose material changes. If the Client deliberately conceals relevant information or knowingly provides false or misleading information or documents, the Agent may refuse to submit them, require correction, advise the consequences in writing and terminate under clause 8.
- f. The Client must provide the Agent with truthful, accurate and complete information and documents and must proactively provide updated information and replace any expired, invalid or outdated documents as soon as reasonably practicable. Subject to applicable law, the Client is responsible for adverse consequences caused by the Client's failure to comply with this obligation.
- g. The Client file will be kept securely for at least 7 years after the last action on the file. It will not be transferred or disclosed to any third party without the Client's written consent, except as required or authorised by law.
- h. If the Authority requests access in writing for the purpose of carrying out its functions under paragraphs 316(1)(a) to (d) of the Migration Act 1958, the Agent must give the Authority access to any Client file in the possession of the Agent or a member of the Agent's business.
- i. On termination or completion, the Agent will securely retain the Client's file for the period required by law. Documents to which the Client is entitled will be returned to the Client or the Client's new registered migration agent within 14 days after a written request. The Agent will not claim a lien over those documents except where lawfully permitted.

6. FEES

The fee type and fee estimate agreed below form part of this Agreement. No fee will be charged without an itemised invoice, and a compliant receipt will be provided after payment.

☐ Fixed fee ☐ Hourly rate

Service / work stage	Total
	AUD
	AUD
	AUD

Agreed total fixed fee / latest estimated total: AUD GST (10%): AUD

Priority Processing Fee (if applicable): AUD

Agreed total fixed fee + GST: AUD

First instalment fee (if applicable): AUD is to be paid when signing the contract.

Second instalment fee (if applicable): AUD is to be paid before lodgement.

Exceptional circumstances and fee variations. A fixed fee, hourly rate or latest time estimate will not be exceeded or varied unless exceptional circumstances arise after signing and make the agreed fee, rate or estimate impracticable. Before any variation, the Agent will give written notice of the proposed change and reasons, provide an updated reasonable estimate, and obtain the Client's written agreement as required by section 46 of the Code.

Signed by the Client: Date (DD/MM/YYYY):

Signed by the Agent: Date (DD/MM/YYYY):

Compass Education and Migration Pty Ltd

ABN: 17 613 203 419

Level 36, 680 George Street, Sydney, NSW, 2000, Australia

7. DISBURSEMENTS

All fees stated in section 6 are solely for the services to be provided under this Agreement. They do not include any third-party charges or disbursements.

The disbursements listed below are estimates based on the applicable charges known when this Agreement is signed. An amount may change because of omitted, incomplete or inaccurate information provided by the applicant, the applicant's location, the applicable application or service category, or another relevant circumstance.

If an estimated amount changes, or an unforeseen disbursement arises, the Agent will give the Client written details and reasons and obtain the Client's written agreement before proceeding. Unless otherwise agreed in writing, the Client must pay the disbursements listed in this section directly to the relevant third party.

The Agent will only include reasonable disbursements. The Client will not be charged more than the actual amount when known; otherwise a reasonable estimate may be used and any excess must be refunded.

Description / charge provider	Amount / estimate	GST (10%)	Total	Direct / on behalf

8. TERMINATION AND REFUND POLICY

a. Either party may terminate this Agreement. The Agent may terminate unilaterally if the Client deliberately conceals relevant information, knowingly provides false or misleading information or documents, refuses correction, instructs unlawful conduct, fails to pay a properly due amount, or commits another serious breach.

b. The Agent will give the written notice required by the Code before termination, except where the Code permits notice afterwards. The notice will address the end date, completed and outstanding work, pending matters, further assistance, document rights, Client money and refunds. Required notifications to the Department, ART or another body will be made.

c. Non-refundable amounts. Subject to applicable law, properly invoiced fees for work actually completed and actually incurred non-recoverable disbursements are not refundable merely because:

- (1) the Client's application is unsuccessful;
- (2) the Client provides incorrect or false information to the Agent;
- (3) the Client is unable or unwilling to provide all required documents requested by Compass Education and Migration or the Department of Home Affairs; or
- (4) the Client is unable or unwilling to comply with lawful directions or recommendations made by the Department of Home Affairs.

d. Change of circumstances. If this Agreement ends because of the Client's change of mind, or because changes to migration legislation, regulations or policies of a relevant authority make the agreed services no longer applicable, Compass Education and Migration may deduct properly invoiced fees for work actually completed and actually incurred non-recoverable disbursements. The remaining unearned fees and unused Client money will be refunded, subject to applicable law.

e. Refund calculation. Fees for completed and partially completed work must be calculated in accordance with the fixed-fee stage allocation in paragraph (f), together with the completed tasks, work records and deliverables for the relevant stage. A stage fee is earned only when that stage has been substantially completed. If this Agreement ends during a stage, only a fair and reasonable proportion may be charged. The Client will receive an itemised calculation. Any remaining unearned fees and unused Client money will be refunded promptly and no later than 14 days after the refund becomes payable.

f. Fixed-fee stage allocation for visa application services involving preparation and lodgement. Unless a different allocation is stated in the Schedule of Fees, completed and partially completed work will be calculated using the following allocation: initial assessment and written advice - 15%; document checklist and review - 20%; preparation of forms and application materials - 30%; final review and Client confirmation - 15%; lodgement and provision of lodgement confirmation - 20%.

9. PAYMENT METHOD AND STRUCTURE

Client money will be deposited into a separate financial-institution account used only for Client money and may be paid out only for properly invoiced earned fees, agreed disbursements, government or review-body charges, a refund, or a permitted transfer on the Client's instruction. No money for immigration assistance will be received before this service agreement is in force, except as lawfully permitted for an initial consultation.

☐ Bank transfer ☐ Card ☐ Cheque ☐ Cash (receipt required)

Bank: Commonwealth Bank (Australia)
Account Name: Compass Education and Migration Pty Ltd
Account No.: 1034 7778
BSB: 062 759
Branch Location: T10.52C World Square Shopping Ctr, Sydney, NSW, 2000
SWIFT Code: CTBAU2S

Signed by the Client:

Date (DD/MM/YYYY):

Signed by the Agent:

Date (DD/MM/YYYY):



Consumer guide – registered migration agents

It is unlawful for anyone to give immigration assistance in Australia if they are not a registered migration agent, Australian legal practitioner or exempt person. Any person who gives unlawful immigration assistance in Australia should be reported using the [Border Watch Online Report](#) on the Department of Home Affairs (the Department) website. It is important to know that any person who helps with your immigration matter cannot guarantee you a visa.

Registered Migration Agents

Registered migration agents must meet professional standards, follow a Code of Conduct and maintain up-to-date knowledge of migration law and procedure.

All registered migration agents have a unique Migration Agents Registration Number (MARN). You can check if a person is registered on the OMARA website www.mara.gov.au

The **Office of the Migration Agents Registration Authority (OMARA)** is part of the Department and is the regulatory body for registered migration agents in Australia. The OMARA:

- assesses and decides applications for registration as a migration agent in Australia
- monitors the conduct of registered migration agents, investigates complaints, and takes disciplinary action if necessary.

The OMARA cannot help you with a visa or sponsorship application or order a registered migration agent to refund fees to you.

Code of Conduct

The Code of Conduct for registered migration agents requires registered migration agents to:

- be honest about your chances of getting a visa
- provide correct advice and keep you informed of the progress of your application and any changes that may affect it
- act within the law, your interests and protect your privacy
- tell you if they have an interest that conflicts with your interests and take appropriate action
- give you a written statement before starting work on the services to be provided, estimated fees and other costs
- keep funds in a separate bank account if you pay in advance
- give you an invoice listing the actual services completed and the amount payable

- keep proper records on the processing of your application.

The full [Code of Conduct](#) is available on the OMARA website.

Concerns about registered migration agents

If you have a problem with your registered migration agent, try to resolve it with them first. If you cannot resolve the matter with your agent, you can contact the OMARA if you need help. You can lodge a complaint about your registered migration agent by completing the [complaint form](#) on the OMARA website.

Making a complaint will not affect your current visa application, or change the outcome of a previous visa refusal or cancellation decision.

Australian Legal Practitioners and Exempt Persons

Certain people, such as Australian legal practitioners and exempt persons, do not have to be registered as a migration agent to provide immigration assistance in Australia.

Australian legal practitioners must act in accordance with the professional conduct rules of their relevant legal authority. If you would like to lodge a complaint about a legal practitioner read the 'Consumer guide – legal practitioners', available on the [Department's website](#).

Exempt persons include close family members and sponsors. A full list of exempt persons can be found on [Form 956 – Appointment of a registered migration agent, legal practitioner or exempt person](#). Exempt persons cannot charge a fee for providing immigration assistance.

Ending an appointment

If you want to end an appointment complete [Form 956](#).

Translating and Interpreting Service

Speak to an interpreter through the Translating and Interpreting Service (TIS National)

www.tisnational.gov.au ☎ 131 450

July 2021

Credit card charge authorization form

CUSTOMER'S INFORMATION

First Name:

Last Name:

Date of Birth:

Mobile:

Email Address:

Residential address:

Payment

Card Type:

- ☐ VISA
☐ MASTER CARD
☐ AMEX
☐ JCB
☒ DINERS CLUB INTERNATIONAL

(COST OF PAYMENT: Visa/MasterCard: 1.4% of the debit amount will be charged, AMEX/JCB: 1.4% of the debit amount will be charged. Diners: 1.99% of the debit amount will be charged. These fees are non-refundable and subject to changes.)

Card Holder's Name:

Address (the one you provide to your bank):

Card Number:

Expiry Date:

CVV:

YOU ARE REQUIRED TO FULLY COMPLETED AND RETURN THIS FORM TO US. YOUR COMPLETION OF THIS AUTHORIZATION FORM HELPS US TO PROTECT YOU, OUR VALUED CUSTOMERS, FROM CREDITCARD FRAUD. ALL INFORMATION ENTERED ON THIS FORM WILL BE KEPT STRICTLY CONFIDENTIAL.

By signing below, I declare that the information given on this form is true and correct. I agree and is aware that Compass Education and Migration Pty Ltd has the authority to charge my above said credit card for any application(s) regarding my visa. I understand that should I dispute a charge through my credit card provider before giving reasonable notice to Compass Education and Migration Pty Ltd, it will result the application(s) become invalid and may result in delays in processing for at least 24 hours, I also declare that Compass Education and Migration Pty Ltd will have no responsibility or liability for any visa application outcome due to credit card errors that I incur, including insufficient funds and invalid card information.

Cardholder's Signature:

Date: